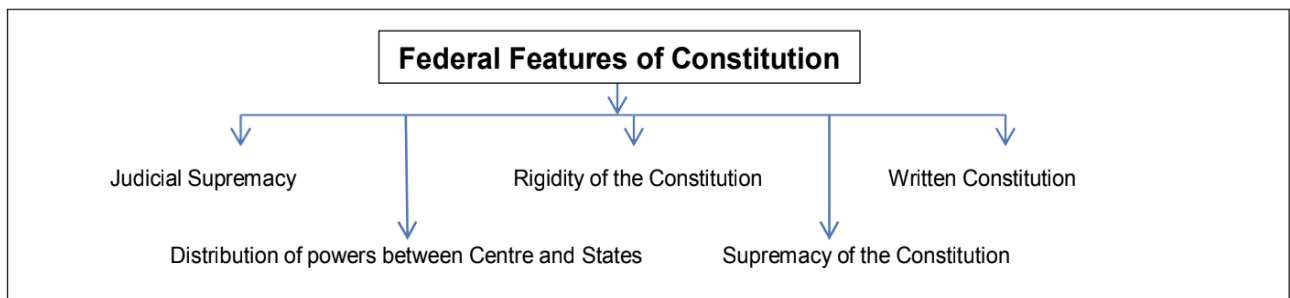
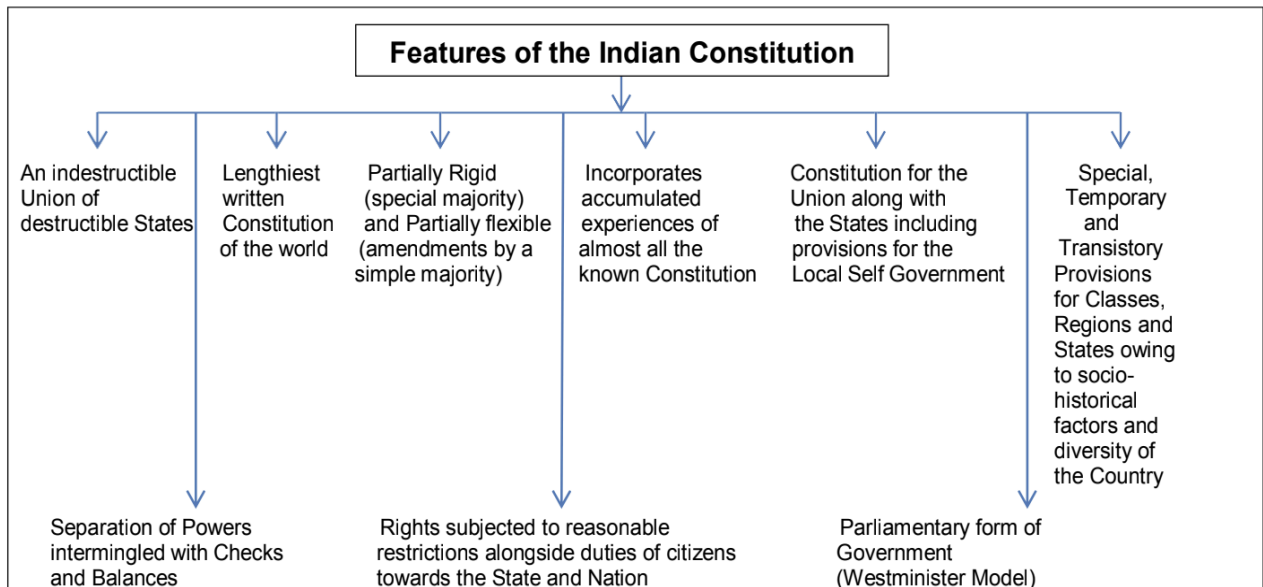


Preamble & Salient Features of the Indian Constitution

Features of Indian Constitution

A major part of the Indian Constitution (almost 70% was derived from Government of India Act, 1935) owing to the familiarity with the political and administrative mechanism as envisaged under the Act.

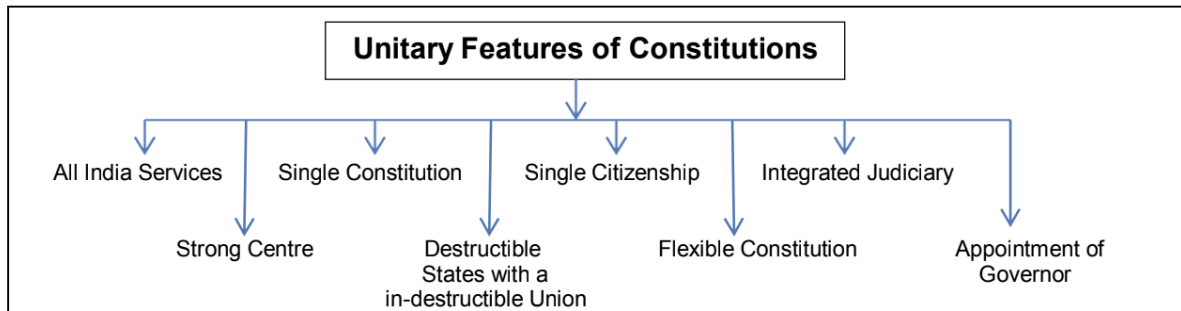


In a federal government subjects of governance are divided between federal and state governments. States enjoy much independence in their sphere.

The Indian constitution has clearly demarcated powers between the Union and State governments. State governments have their rights on state subjects mentioned in List-II of seventh schedule.

States can also legislate over concurrent subjects unless they are not in direct conflict with the central government's legislation.

Under Article 368, no amendments in the status of the powers of centre and states can be made without participation of the States. So, the Indian constitution is not as easy to amend as the British Constitution but definitely it's not as tough as the US Constitution.



In the federal countries like the USA and Australia, States have their own constitution. But, India has a single constitution for both Union and States. Both centre and states function under a single constitution.

When there is any conflict between a law of State and center for any concurrent matter then Centre's provisions prevail. The centre also enjoys residuary powers.

Union enjoys legislative control over 100 subjects stated under List – I of the seventh schedule as against 61 subjects enlisted under List-II (State list). Also, the Union enjoys overriding power over state on matters enlisted in the Concurrent list. The Residuary power (over subjects finding no mention in either of the lists) also lies with the Union.

India is an indestructible Union of destructible States.

Governors of the states are appointed by the President on the advice of the Council of Ministers of the central government. Hence, the Governor acts like an agent of the Centre in State. This increases the centre's control on states.

Indian Parliament can alter the boundaries, names of the states even without the consent of states. Hence, Parliament enjoys powers to form a new State, merge the states etc. to the extent it seems right.

Important Sources of the Indian Constitution					
Source/Country	Provisions borrowed		Source/Country	Provisions borrowed	
Government of India Act, 1935	Office of Governor, Federalism, Emergency, Judiciary, Public Service Commissions, Administrative, Details.		USA Constitution	Judiciary's Independence, Fundamental Rights, Judicial Review, Impeachment of President and removal of Judges of Supreme Court and High Court, Preamble.	
Ireland (Irish Constitution)	Method of election of President, Directive Principles of State Policy & Nomination of Rajya Sabha Members.		British Constitution	Law making procedure, single citizenship, parliamentary government, cabinet system, bicameralism, Rule of Law.	
Canadian Constitution	Residuary Power to centre, Federation with strong centre, Appointment of governor, Advisory Jurisdiction of Supreme Court		Soviet Constitution	Fundamental Duties, Planning, (social economic and political) Ideals of Justice in Preamble.	
				South African Constitution	Amendment of Constitution, Rajya Sabha Elections.
				French Constitution	Republic, Ideals of Liberty, equality and fraternity in the Preamble.
				Australian Constitution	Concurrent list, Joint sitting, Freedom of trade, Commerce and inter; course
				Japanese Constitution	Procedure established by Law.

PREAMBLE

WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure to all its Citizens :

JUSTICE, Social, Economic, Political;

LIBERTY of thought, expression, belief, faith and worship;

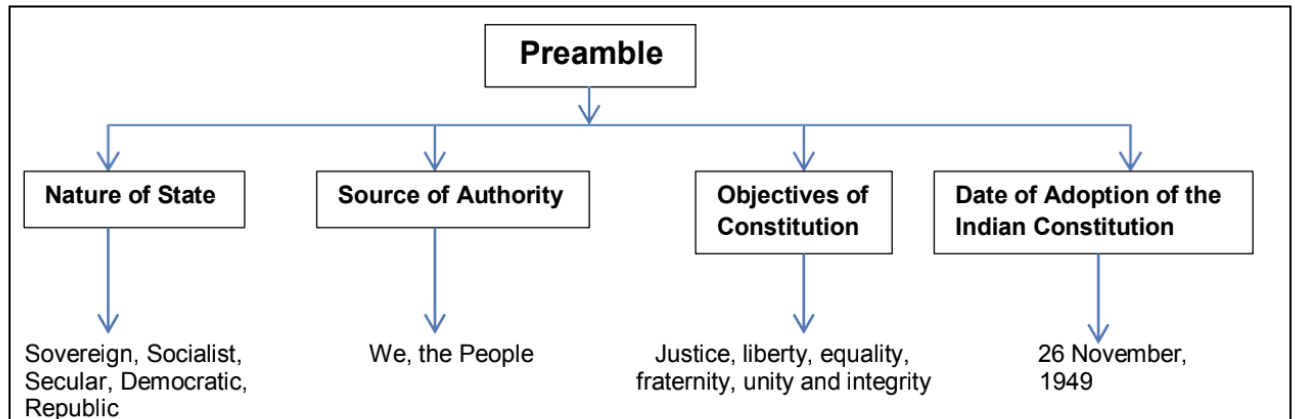
EQUALITY of status and of opportunity, and to promote among them all;

FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation :

IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949 do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION.

Sources of Preamble	
Country	Sources
American Constitution	Preamble
USSR	Ideals of Justice

French Constitution	Republic and the ideals of Liberty, equality and fraternity
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Significant Words of Preamble

Sovereign

Sovereignty refers to the independent authority of the State. It means that state has the power to legislate on any subject which is not subject to the control of any other state or external power.

Socialist

The word Socialist was added to the Preamble by 42nd Constitutional Amendment, 1976.

Socialism does not mean resisting the private sector, instead it emphasizes that wealth should not be concentrated in a few hands and income inequality of income should be abolished.

Secular

The term secular was inserted by 42nd Constitutional Amendment Act, 1976.

It explained that the State does not recognise any religion as a state religion and it treats all religions equally and with equal respect, without interfering with their individual rights of religion, faith or worship.

Democratic

Democracy is defined as that form of government in the administration of which the adult population has some direct or indirect share.

Our democracy is a representative democracy which means people have no direct control such as referendums or initiative. People exercise their power through elected representatives in Parliament at Centre and State legislatures at the state level.

Democratic republic stands for welfare of all the people of India which embodies the concept of welfare state, laid down in Directive Principles of State Policy.

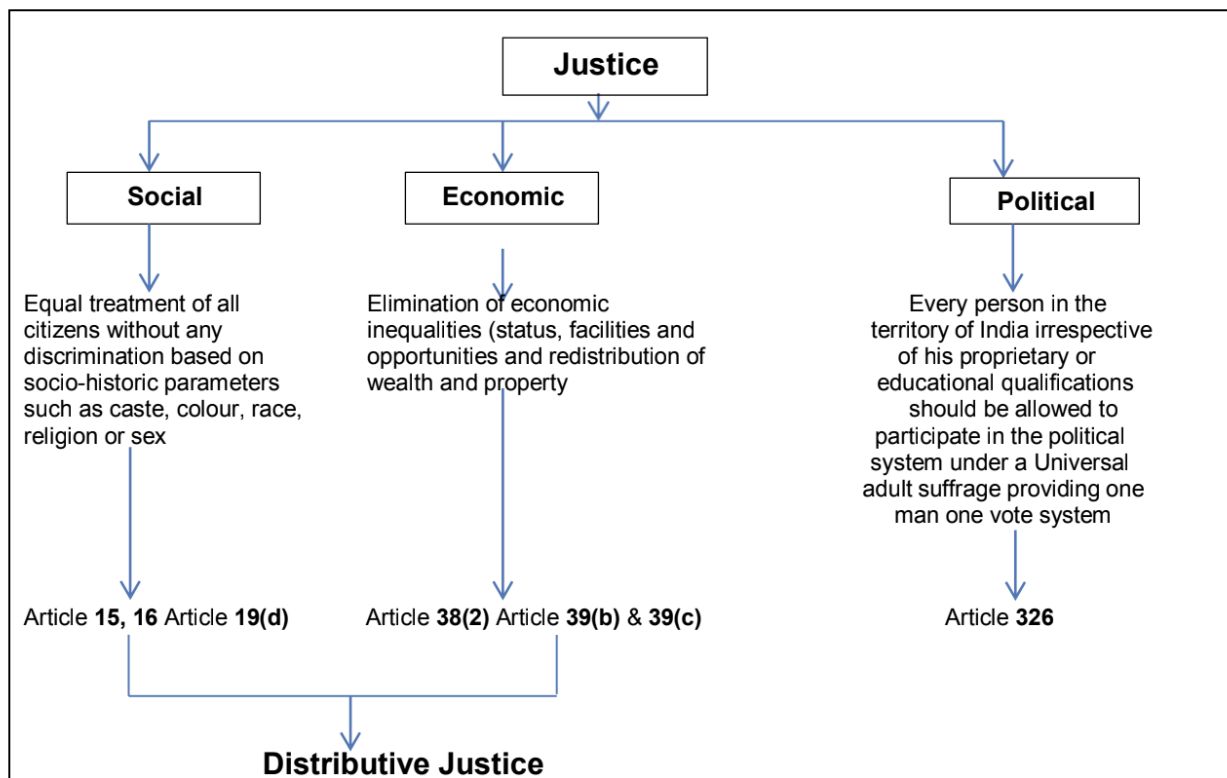
Republic

Republic means a form of government in which Head of the State is an elected person and not a hereditary monarch like a King or the Queen as in Great Britain.

The President is the Head of the Republic of India who is indirectly elected by the people for a fixed period of 5 years. He can also be removed from office by Impeachment (Article 61).

Liberty

Preamble mentions liberty of thought, expression, belief, faith and worship. These freedoms have been provided in our constitution under Fundamental Rights (Article 19, 25-28) and are enforceable by court of law (through Article 32 and 226).



Equality

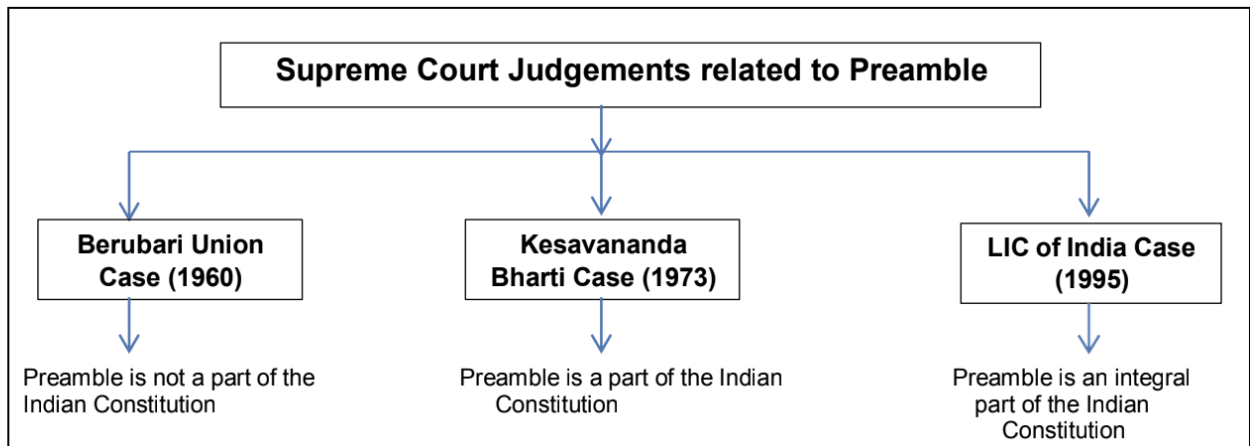
Equality of opportunity and status is given in Preamble which is ensured by Article 14-18 and Article 325-326.

This means that every person shall have equal rights of opportunity for any job, work and nobody can be discriminated or treated as lower than anyone else only on the grounds of religion, race, caste, sex etc.

Equality of status and opportunity for all is the basis for ultimately establishing an egalitarian society.

Fraternity

It refers to the spirit of brotherhood, a feeling that all people are children of the same soil, the same motherland. Fraternity ensures the Unity and Integrity of India.



Union and its Territories

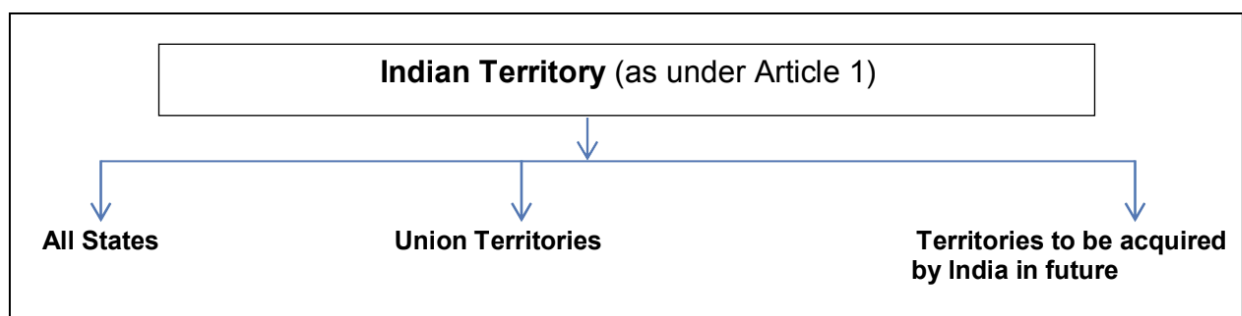
Part I of the Indian Constitution includes Article 1 to 4 related to Union and its territory. Article of the Constitution says India, that is Bharat, shall be a Union of states. This tells us the nature of the Indian Political system.

• The expression Union of states establishes :

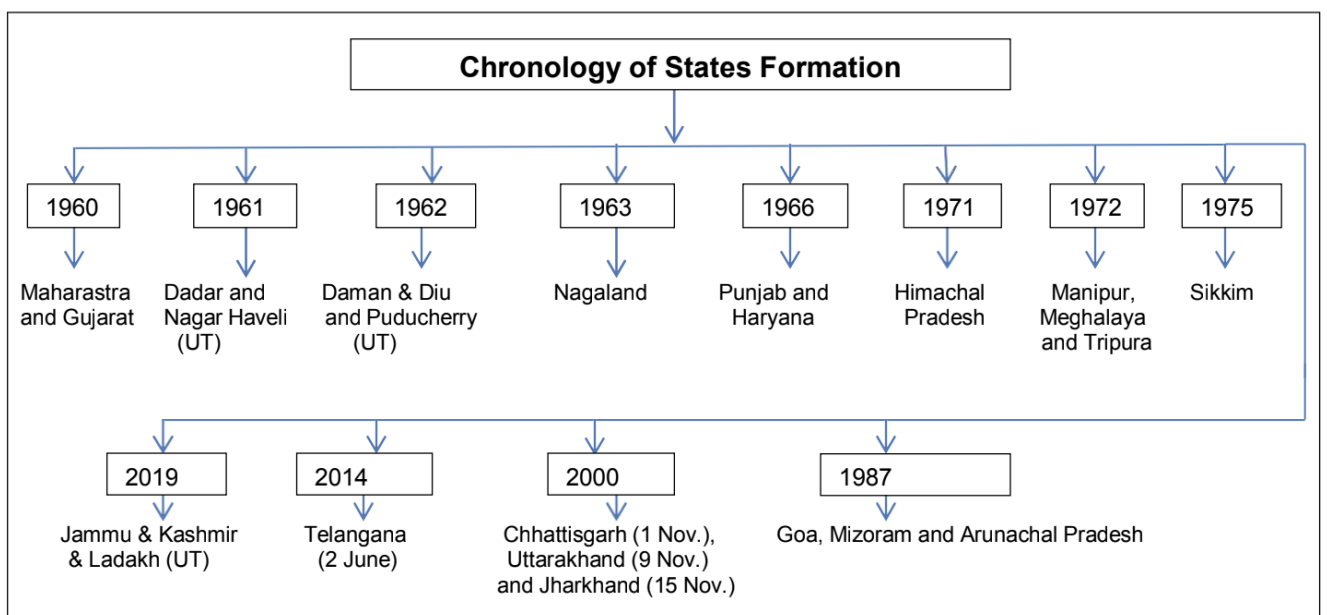
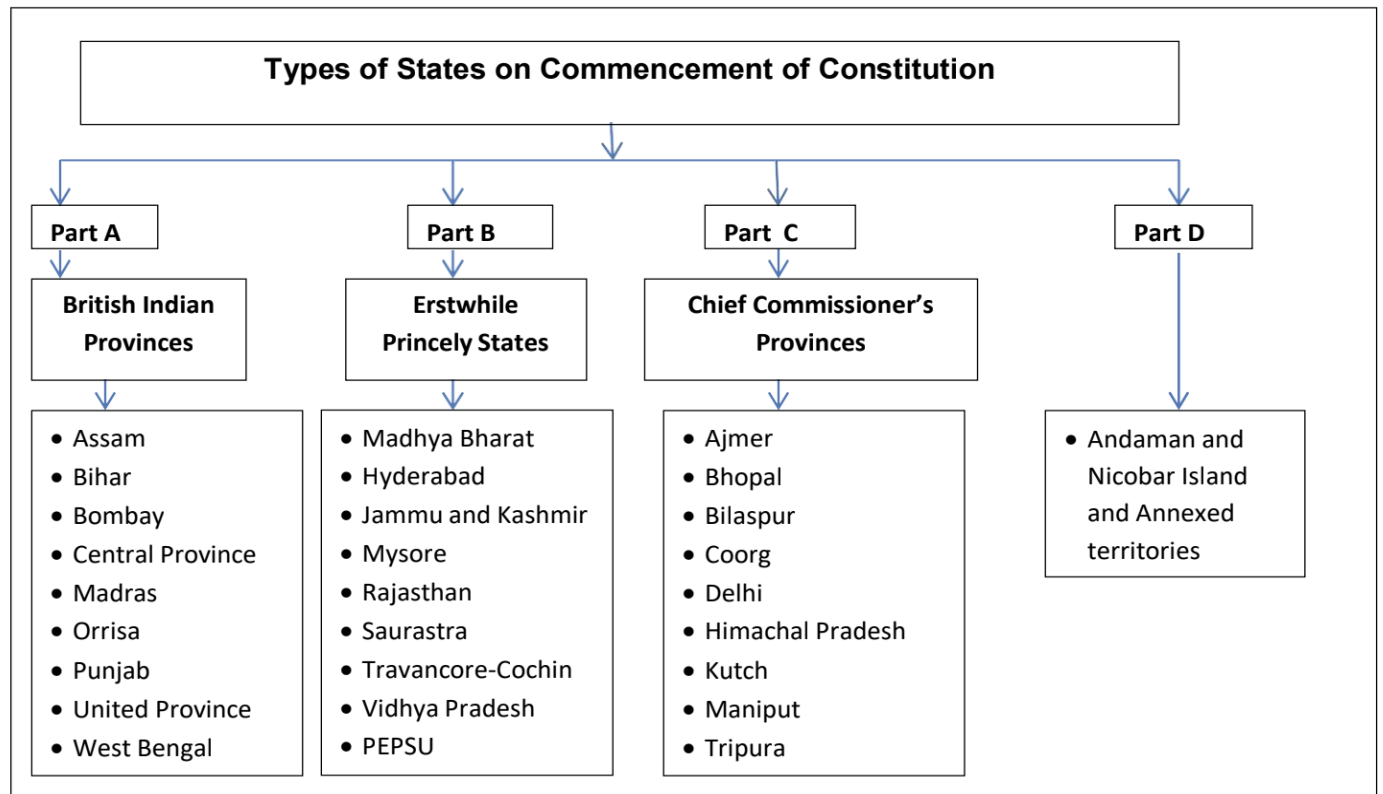
- (a) India is not the result of an agreement between States.
- (b) States have no right to secede from the Indian Union. Thus, India preferred the term Union instead of Federation.

The term Union of India includes all States but territory of India include entire territory i.e. states, and any other territory that may be acquired by India in future.

The Territory of India is a wider expression and includes all territory over which sovereignty of India extends.



Part I (Article 1-4)	
• Article 1	Name and territory of the Union
• Article 2	Establishment or Admission of new states
• Article 3	Formation of new states and alternation of areas, boundaries or name of existing states.
• Article 4	Laws made under Article 2 and 3 to provide for the amendment of the First and Fourth Schedules and supplemental, incidental and consequential matters.



Formation of New States/Union Territories and Alteration of Names

- Assam became a British protectorate in 1826, it was separated from Bengal in 1874 and was reformed as Assam in 1912. It got full statehood on 26 January, 1950.
- Andhra Pradesh was formed in 1953 by taking out some territory from the State of Madras.
- Maharashtra and Gujarat were two states created by Bombay Reorganisation Act, 1960. Thus, creating Marathi and Gujarati Speaking states respectively.

- Bihar was formed by the British on 22nd March, 1912 (carving out of Bengal) and got statehood on 26th January, 1950.
- Orissa was made a separate province on 1st April, 1936 and gained statehood in 1950.
- Madras Presidency was reorganised as a state in 1950 and renamed Tamil Nadu in 1969.
- Former states of Travancore, Cochin and Malabar were merged to form the state of Kerala in 1956.
- Mysore state was formed on 1st November, 1956 by bringing together Kannada speaking regions.
- In 1963, Nagaland was created as a state out of Assam separating Naga Hills Area and Tuensang Area by the State of Nagaland Act, 1962.
- Punjab Reorganisation Act, 1966 created the state of Haryana and Chandigarh as Union Territory out of Punjab.
- Himachal Pradesh was created with the merger of 30 princely states in 1950, was declared a Union Territory in 1956 and gained statehood on 25 January, 1971.
- The two Union Territories of Manipur and Tripura were made states which were earlier union Territories. The sub-state of Meghalaya gained statehood. In 1987, Mizoram and Arunachal Pradesh became the 23rd and 24th Indian states.
- Sikkim became a full-fledged State by 36th Constitutional Amendment Act, 1976. Initially, Sikkim was a protectorate of India and in 1974 by 35th Constitutional Amendment Act, 1975. Sikkim became an Associate State.
- The Union Territory of Mizoram gained statehood by State of Mizoram Act, 1986.
- The Union Territory of Arunachal Pradesh was given statehood in 1986 by Arunachal Pradesh Act, 1986.
- State of Jammu & Kashmir was bifurcated into Union Territories of Jammu & Kashmir and Ladakh on 31st October, 2019.
- Union Territories of Dadra and Nagar Haveli and Daman and Diu were merged on 26th January, 2020 with the capital at Daman.

National Symbols

On August 7, 1906 at Parsi Bagan Square, Calcutta the first national flag of India was hoisted by Surendranath Banerjee. Madam Bhikaji Cama on 22nd August, 1907 hoisted the flag at Stuttgart, Germany.

The National Flag of India (designed by Pingali Venkayya in 1916) was adopted by the Constituent Assembly on July 22, 1947. It is a horizontal tricolor of deep saffron (kesari) at the top, white in the middle and dark green at the bottom in equal proportions. In the centre of the white band is a navy blue wheel representing the Chakra, a symbol of progress and of movement. The ratio of the length of the flag to its width is 3:2.

National Emblem

The National Emblem is an adaptation from the Sarnath Lion Capital. It was adopted by the Government of India on 26 January, 1950. The words Satyameva Jayate from Mundaka Upanishad, meaning Truth Alone Triumphs are inscribed below the abacus in Devanagari script.

In the original, there are four lions, standing back to back, mounted on an abacus carrying sculptures in high relief of an elephant, a galloping horse, a bull and a lion separated by intervening wheels over a bell-shaped lotus.

National Anthem

Jana-gana-mana, composed originally in Bengali by Rabindranath Tagore, was adopted in its Hindi version by the Constituent Assembly as the National Anthem of India on 24 January 1950.

It was first sung on 27 December, 1911 at the Calcutta Session of the Indian National Congress.

National Song

The song Vande Mataram was composed in Sanskrit by Bankimchandra Chattopadhyay from Anandamatha. It was first sung in political context by Rabindranath Tagore at the 1896 session of the Indian National Congress.

It was adopted by the Constituent Assembly on 24 January, 1950. **National**

Animal

Panthera tigris, a striped animal, is the national animal of India. It has a thick yellow coat of fur with dark stripes. The lion was the national animal of India till 1972. Later on, it was replaced by a tiger.

National Calendar

The national calendar is based on the Saka Era, with Chaitra as its first month and a normal year of 365 days from 22 March 1957 along with the Gregorina calendar. 1 Chaitra falls on 22 March normally and on 21 March in leap year. The calendar was introduced by the Calendar Reform Committee in 1957.

National Bird

Peacock (*Pavo cristatus*), which is a symbol of grace, joy, beauty and love is the national bird of India.

In India the peacock is found in almost all parts and enjoys full protection under the Indian Wildlife (Protection) Act, 1972.

National Flower

Lotus, botanically known as the *Nelumbo Nucifera Gaertn* is the national flower of India. It symbolizes divinity, fertility, wealth, knowledge and enlightenment.

National Tree

The Banyan tree (*Ficus benghalensis*) is the National Tree of India.

National Fruit

Mango (*Manigifera Indica*) is the National Fruit of India.

National River

Former P.M. Monmohan Singh declared Ganga as The National River of India on February, 20, 2009.

National Aquatic Animal

To save dolphins (*Planista gangetica*) from extinction, the Union government declared them as the national aquatic animal on October 5, 2009.

National Currency

The Indian Rupee sign is an allegory of Indian ethos. The symbol is an amalgam of Devanagari Ra and the Roman Capital R with two parallel horizontal stripes running at the top representing the national flag and also the equal to sign.

The Indian Rupee sign was adopted by the Government of India on 15th July, 2010.